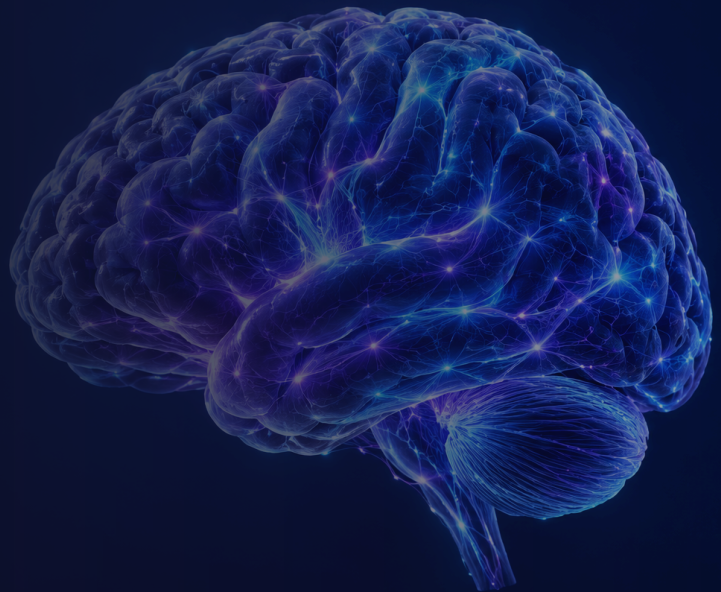


UK & Ireland Disciplinary Procedure

A practical policy template for organisations to manage conduct concerns consistently, fairly, and with appropriate process safeguards.



01

Purpose and scope

Use this procedure to set clear conduct expectations and a fair, proportionate process for investigating and addressing alleged misconduct.

This procedure sets out the action taken when employees breach **(Company)** policies or procedures, or fail to meet conduct standards. **(Company)** operates a disciplinary procedure to encourage employees to achieve and maintain satisfactory standards of conduct in line with **(Company)** values.

This procedure applies to all employees of **(Company)** UK and Ireland. The disciplinary procedure is not intended to be contractually binding and may be withdrawn or varied by **(Company)**.

(Company)'s disciplinary procedure does not apply to an employee on probation. While working for **(Company)**, employees must at all times maintain professional and responsible standards of conduct.

Employee obligations

1. Employees are required to comply with the terms and conditions contained in their contract of employment. Obligations regarding the following matters are important:

- Hours of work.
- Procedure for notifying absence from work.
- Non-disclosure of confidential information.

2. Employees are also required to observe the Code of Conduct, all regulations posted or communicated on any internal system, statutory regulations and **(Company)** practices, policies or procedures, whether or not they are covered in this disciplinary procedure.

3. Any breach of the Code of Conduct, regulations, practices, policies, procedures, or the terms and conditions of employment may lead to disciplinary action, up to and including summary dismissal.

Template note: Replace every instance of **(Company)** and tailor approval routes, policy links, contact details, and time limits as appropriate. Obtain appropriate HR and legal review before implementation.



Policy map

A structured route from initial investigation through to appeal, absence management, and support.

1. Disciplinary procedure

1.1 Investigation

1.2 Informal resolution

1.3 Suspension from normal duties or suspension from the workplace

1.4 Progression to disciplinary hearing

1.5 Conducting the hearing

1.6 Sanctions

1.7 Appeals

2. Employee absence during disciplinary process

2.1 Absence during a disciplinary process

2.2 Holding the hearing in the employee’s absence

3. Support

Principles for use

Apply this procedure without undue delay, maintain appropriate confidentiality, keep records, and ensure employees are offered the process rights set out in the relevant section.

1. DISCIPLINARY PROCEDURE

1.1

Investigation

Establish the facts, determine whether there is a case to answer, and identify the appropriate route forward.

When concerns are raised or misconduct is reported, an investigation is carried out to look into the matter and establish whether there is a case to answer. The investigation helps establish whether the matter requires a disciplinary hearing, whether an informal resolution will resolve it, or whether there is no case to answer.

If an employee is asked to participate in an investigation, they are required to cooperate fully. All participants in an investigation are required to maintain confidentiality.

1.2

Informal resolution

Where proportionate, resolve minor conduct concerns privately and promptly.

Where appropriate, cases of minor misconduct are dealt with and resolved informally between the employee and their manager. These discussions are held in private and without undue delay whenever there is cause for concern.

In some cases, an informal warning will be issued to confirm the expectations required and the next steps if no improvement is seen. The informal warning stays on the **(Company)** personnel record for 12 months. This is not a formal disciplinary sanction and does not form part of the disciplinary procedure, but **(Company)** may issue disciplinary proceedings if the behaviour continues and/or the misconduct is repeated.

Ireland: For employees based in Ireland, no informal warning is issued outside of the disciplinary procedure.

1.3

Suspension

Suspension is a precautionary measure, not a disciplinary finding.

There are instances where suspension with pay is necessary while investigations are carried out. Suspension takes one of the following forms:

- **Suspension from normal duties:** the employee is asked to carry out alternative tasks, duties, or another role on a temporary basis.
- **Suspension from the workplace:** the employee is asked to refrain from attending work and/or client sites and from using **(Company)** assets such as laptops and mobile phones.

(Company) has the right to suspend with pay if there are reasonable grounds for concern about the employee remaining in the workplace. The employee will receive written confirmation of the terms of their suspension.

Suspension will not prejudice any disciplinary hearing that results from an investigation. Where an employee is suspended from the workplace, access to business systems may be suspended to allow investigations to take place. Suspension is kept under regular review and for as short a period as possible.

1.4

Progression to a disciplinary hearing

Give clear written notice and explain the alleged conduct, practical arrangements, and employee rights.

If a disciplinary hearing is taking place, **(Company)** will provide a minimum of two working days' notice and inform the employee in writing of:

- The purpose of the hearing, that it is held under the disciplinary procedure, and details of the nature of the alleged misconduct or gross misconduct.
- The time, date, and location.
- The right to be accompanied at the hearing by a work colleague or trade union representative.
- The nature of the allegations made against the employee, as stated in this procedure.

Where the employee is unable to attend and provides a good reason, the hearing is adjourned to another day within five working days of the original date, unless there are extenuating circumstances. If the employee is unable to attend the rearranged hearing, the hearing may take place and an outcome decision may be reached in the employee's absence.

1.4

Misconduct and gross misconduct

The examples below are non-exhaustive and must be assessed in context.

Misconduct is unacceptable employee behaviour where the employee's conduct is unsatisfactory. **Gross misconduct** consists of acts so serious in themselves, or with such consequences, that they may call for dismissal or actions short of dismissal without notice for a first offence.

Examples regarded as gross misconduct

- Theft, fraud, bribery and/or corruption.
- Physical violence.
- Deliberately accessing internet sites containing pornographic, offensive, or obscene material.
- Refusal of a reasonable management request that could have serious consequences.
- Discrimination, bullying, or harassment.
- Bringing the organisation into serious disrepute.
- Breach of a substance misuse policy.
- Causing loss, damage, or injury through serious negligence.
- Serious breach of company or site rules on health and safety.
- A serious breach of trust and confidence.

Conduct outside the workplace and criminal matters

An employee may face disciplinary action for misconduct outside the workplace if it has an impact on **(Company)** or its employees.

If an employee is charged with, or convicted of, a criminal offence, **(Company)** may consider disciplinary proceedings or action. It is the employee's responsibility to notify **(Company)** of any charges or criminal convictions.

1.5

Conducting the hearing

A formal disciplinary sanction is only imposed after the employee has been given the opportunity to attend a disciplinary hearing.

The hearing is conducted as follows:

- It is conducted by a nominated manager together with a note taker.
- The employee has the opportunity to explain their case and provide documents.
- The employee is entitled to be accompanied at disciplinary hearings by a colleague or trade union official.
- A record of the meeting is taken and the employee is entitled to a copy of the notes on request.
- The employee must treat the hearing as confidential, as must any information communicated in connection with an investigation or disciplinary matter.

Accompaniment at the hearing

If it is unreasonable for the chosen companion to attend, **(Company)** reserves the right to refuse the chosen companion's attendance. The employee is permitted to change their chosen companion.

If the companion of choice is unavailable, **(Company)** may rearrange the hearing to a more mutually convenient date within the next five working days. During the hearing, the companion may confer with the employee, present the employee's case and sum up, and respond on the employee's behalf to views expressed at the hearing. However, the companion may not answer questions on the employee's behalf.

Sanctions • early-stage warnings

The hearing manager may issue the following sanctions if any allegation is upheld.

Informal warning and verbal warning

If conduct does not meet acceptable standards, the areas of dissatisfaction are brought to the employee's attention. If appropriate, an informal warning is given. A record of the warning is kept for 12 months for UK-based employees.

For Ireland-based employees, if necessary, a formal verbal warning in writing is given and a record kept on file. It will usually be appropriate for a first act of misconduct or where there are no other live warnings on the disciplinary record. The verbal warning will usually be active for six months.

First written warning

A first written warning is issued for misconduct if an employee's conduct does not meet the acceptable standards of **(Company)**.

The outcome letter contains:

- Written details of one or more reasons for the warning.
- The employee's right of appeal in line with this procedure.
- A record that is kept for 12 months.

If there is no sustained satisfactory improvement or change, a warning may be considered in further disciplinary proceedings.

1.6

Sanctions · final warning and dismissal

Consider the seriousness of the conduct, any live warnings, and the circumstances of the case.

Final written warning

If the offence is sufficiently serious, or the employee has previously received a formal warning that is still live (for example, within 12 months), the next level-up sanction is administered.

The outcome letter will be in writing and detail one or more reasons for the final written warning, provide a right of appeal in line with this procedure, and set out that a record of the warning will be kept for 12 months. Where there is no sustained satisfactory improvement or change, the warning is considered in further disciplinary proceedings and may lead to dismissal.

Final written warnings may impact an employee's compensation and promotion eligibility. This will be communicated by their manager.

Dismissal

An employee may be dismissed with or without notice, or payment in lieu of notice, where after a final written warning there is no satisfactory improvement in conduct; further misconduct occurs; or an act of sufficiently serious misconduct is committed.

The outcome letter will be in writing, detail one or more reasons for dismissal, and provide a right of appeal in line with this procedure.

As an alternative to dismissal, **(Company)** may instead transfer employment or transfer the employee to another position, demote the employee, bar the employee from promotion, or apply another sanction it deems appropriate in the circumstances.

Time limit for warnings

A verbal warning (Ireland only) remains valid for six months. Informal warnings (UK only) and first and final written warnings (Ireland and UK) remain on file for 12 months from the issue date. If further warnings are issued, the 12 months reset with the latest warning.

1.7

Appeals

Employees have a defined right to challenge a disciplinary sanction.

An employee has the right to appeal against a disciplinary sanction. The employee must lodge their appeal, including the grounds of appeal, in writing to **(People/HR Team)** within 10 calendar days of receipt of the disciplinary outcome letter.

An appeal may be raised on the following grounds:

- **New evidence:** evidence that has come to light since the disciplinary outcome was issued.
- **The procedure:** a failure to follow procedure that had a material effect on the disciplinary outcome.

A different manager, with at least the same level of seniority as the disciplinary hearing manager, will be appointed to hear the appeal.

Their decision is final and will be provided in writing. At the appeal, any disciplinary sanction imposed is reviewed in accordance with the grounds of appeal. There is no further right of appeal.

2.1

Absence during a disciplinary process

Handle illness and other absence fairly, while considering participation and reasonable adjustments.

If an employee's ill health prevents the disciplinary procedure from being followed because the employee is too ill to participate in the investigation, **(Company)** acts consistently with the following principles:

- If the absence is likely to be short, **(Company)** will wait until the employee recovers and is able to take a full part in the process.
- When the absence is ongoing and likely to remain off sick for an extended period, **(Company)** requires the employee to cooperate with occupational health in determining whether they are sufficiently fit to take part in the disciplinary process.
- If, following consultation with occupational health, the employee appears fit to take part, the process will continue.
- Where the employee does not appear fit to take a full part in the standard disciplinary procedure, **(Company)** will consider reasonable adjustments to enable effective participation, for example through the use of a proxy or written representations.

2.2

Holding the hearing in the employee's absence

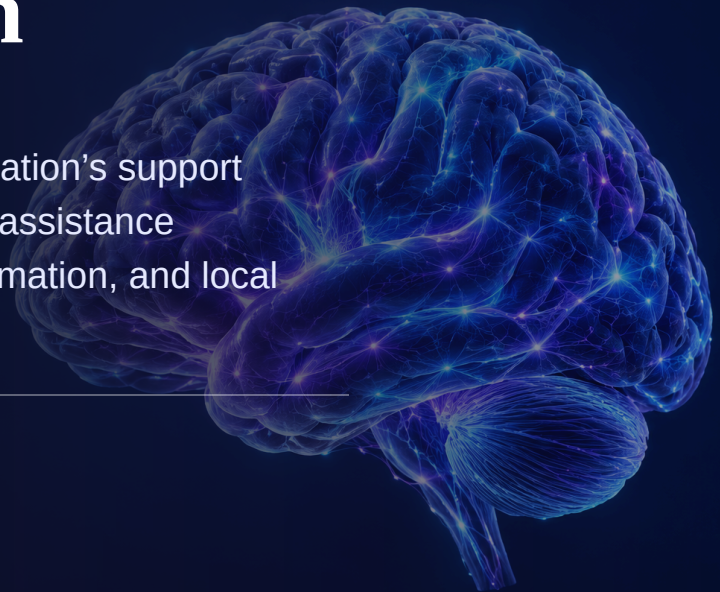
Use only in extenuating circumstances and make sure the decision is recorded.

In extenuating circumstances, when an employee is unable to attend a disciplinary hearing, **(Company)** reserves the right to proceed with a disciplinary hearing and outcome decision in the employee's absence.

3. SUPPORT

Support and implementation

Use this space to insert your organisation's support contacts, related policies, employee assistance programme details, trade union information, and local escalation routes.



Suggested completion fields

- Policy owner: (Company / team)
- HR / People contact: (contact details)
- Employee Assistance Programme: (provider / contact details)
- Related policies: (Code of Conduct; grievance; absence; health & safety; equal opportunities; substance misuse)
- Review date: (date)
- Jurisdictional legal review: (owner / date)